

16. 9:01 AM CASE NUMBER: C25-02477
CASE NAME: RICHARD KABASINSKAS VS. KAISER FOUNDATION HOSPITALS
COMPEL KAISER FOUNDATION HOSPITALS TO FURTHER RESPOND TO PLAINTIFF'S FORM
INTERROGATORY - EMPLOYMENT LAW (SET ONE) NO. 215.1
FILED BY: KAISER FOUNDATION HOSPITALS
TENTATIVE RULING:

Plaintiff Richard Kabasinskas ("Plaintiff") filed a motion to compel a further response to a form interrogatory on March 9, 2026 (the "Motion to Compel Further Response"). The Motion to Compel Further Response was set for hearing on August 31, 2026. The motion is opposed.

Background

The discovery request at issue (the "Discovery Request at Issue") is the following:

1. Form Interrogatories—Employment Law, Set One (the "**FROGs—Employment**") to defendant Kaiser Foundation Hospitals ("Kaiser") **No. 215.1**.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Having considered the moving papers, including the Separate Statement, the opposition papers, and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Request at Issue.

Discovery Request at Issue

FROGs—Employment, No. 215.1.

This form interrogatory seeks the following information:

215.1 Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state:

- (a) the name, **ADDRESS**, and telephone number of the individual interviewed;
- (b) the date of the interview; and
- (c) the name, **ADDRESS**, and telephone number of the **PERSON** who conducted the interview.

Among others, Form Interrogatory No. 215.1 incorporates the following defined term:

(b) **YOU OR ANYONE ACTING ON YOUR BEHALF** includes you, your agents, your employees, your insurance companies, their agents, their employees, your attorneys, your accountants, your investigators, and anyone else acting on your behalf.

The subject response objects that the request is “vague and ambiguous” for a number of different stated reasons. See Plaintiff’s Separate Statement filed March 9, 2026. The response further contends that the interrogatory constitutes “[a]n unwarranted invasion of privacy rights.” The response further objects on the grounds of “...attorney-client privilege, the work-product doctrine, or other privileges or exemptions of similar legal effect.” The response further objects that the request is “duplicative of General Form Interrogatory No. 12.2.” The response further objects that the interrogatory “further objects to this Interrogatory to the extent that it calls for an admission that any action satisfies the legal definition of an ‘adverse employment action.’”

Subject to such objections, the substantive response states “Yes. All other interviews were taken by Defendant’s legal counsel in the course of an attorney-client relationship with Defendant and in connection with this litigation, so any information about those interviews is protected by the attorney-client privilege and the work-product doctrine,” followed by citations to case authority.

The Court has considered and overrules the stated objections.

The responding party is overreaching for various ways in which to characterize the interrogatory as “vague and ambiguous.” This is a standard form interrogatory and the call of the question and its subparts are not so ambiguous so as to render the interrogatory unintelligible and/or preclude an intelligent reply. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 5.5. The stated “vague and ambiguous” and related objections are **OVERRULED**.

The responding party has not shown that the request constitutes an objectionable on some sort of “privacy rights” grounds. To the extent that an entity defendant has any “privacy rights,” they do not shield it from discovery. *SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 756. Rather, the court must employ “a balancing test” and consider “What should be the proper balancing of the requested discovery and its relevance to the subject matter involved in the pending action, and whether it ‘appears reasonably calculated to lead to the discovery of admissible evidence,’ as opposed to any countervailing considerations, such as privacy and privilege?” *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court* (2006) 137 Cal.App. 4th 579, 595; see also *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (where a right to privacy is implicated, courts weigh the loss of privacy against the “legitimate and important countervailing interests disclosure serves.”). The Court has weighed and considered the asserted privacy against the countervailing interest in disclosure and concludes that the interrogatory seeks properly discoverable information about potential material percipient witnesses that outweigh any privacy concerns regarding that information. The privacy objection is **OVERRULED**.

The objections that the interrogatory is “duplicative of General Form Interrogatory No. 12.2” and somehow “calls for an admission that any action satisfies the legal definition of an ‘adverse employment action.’” are both **OVERRULED**. Neither states a valid legal objection to discovery.

This brings the Court to the fundamental objections at issue, the attorney-client privilege and work-product doctrine objections. The rubric for the resolution of the work-product doctrine is plainly laid out in the very case law cited in Kaiser’s response to the interrogatory:

...[W]e hold that witness statements procured by an attorney are not automatically entitled as a matter of law to absolute work product protection. Instead, the applicability of absolute protection must be determined case by case. An attorney resisting discovery of a witness statement based on absolute privilege must make a preliminary or foundational showing that disclosure would reveal his or her “impressions, conclusions, opinions, or legal research or theories.” (§ 2018.030, subd. (a).) Upon an adequate showing, the trial court should then determine, by making an in camera inspection if necessary, whether absolute work product protection applies to some or all of the material.

Coito v. Superior Court (2012) 54 Cal. 4th 480, 495-496 (“*Coito*”). The *Coito* court went on to hold that “a witness statement obtained through an attorney-directed interview is, as a matter of law, entitled to at least qualified work product protection.” *Id.* at 497.

A party seeking disclosure has the burden of establishing that denial of disclosure will unfairly prejudice the party in preparing its claim or defense or will result in an injustice. *Coito, supra*, 54 Cal.4th at 499. If the party resisting discovery alleges that a witness statement, or portion thereof, is absolutely protected because it “reflects an attorney's impressions, conclusions, opinions, or legal research or theories,” that party must make a preliminary or foundational showing in support of its claim. *Id.* at 499-500.

No foundational showing has been made by Kaiser as that the disclosure of any particular witness statements would reveal its attorneys’ “impressions, conclusions, opinions, or legal research or theories.” While not the focus of both sides’ briefing, the Court also notes that no foundational showing has been made by Kaiser that any responsive statements would be protected by the attorney-client privilege either.

At best, the opposition declaration states, in a conclusory fashion that “all interviews at issue were taken by Defendant’s litigation counsel in the course of the attorney-client relationship and in connection with this litigation.” See Declaration of Jennifer L. Mora filed August 17, 2026 (“Mora Decl.”) ¶5. That fails to provide that sort of showing described by the *Coito* court.

Indeed, that assertion begs the issue discussed at length in *Coito*, that the mere fact that interviews were arranged by counsel in the course of investigation is not necessarily sufficient to shield them from discovery under the qualified privilege. See *Coito, supra*, 54 Cal.4th at 495 (“We cannot say, however, that witness statements procured by an attorney will always reveal the attorney's thought process. The Court of Appeal below posited a scenario in which an attorney collects statements from witnesses to an accident with no particular foresight, strategy, selectivity, or planning: “What, for example, of the situation in which an attorney sends an investigator to interview all witnesses listed in a police report, and the investigator asks few if any questions while taking the witnesses' statements?”).

The opposition declaration does not identify any persons interviewed. See Mora Decl., ¶1 *et seq.* It does not describe how those interviews were conducted. *Id.* It does not give details about the context of the interviews, such as when they were taken. *Id.* It says nothing about the nature of any questions asked or any attorney’s involvement in formulating those questions or following up on them. *Id.*

In the absence of such foundational showing, Kaiser has not adequately shown that the qualified work product protection applies to shield production of the requested information. It certainly has not shown that it may assert a blanket objection and refuse to provide any further details responsive to the subject interrogatory. When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

The work-product doctrine and attorney-client privilege objections are **OVERRULED**.

The Court finds that the responding party’s answer to this interrogatory is incomplete. The responding

party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 8:1047.

The motion is **GRANTED** as to this interrogatory and a further response shall be made as ordered below.

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. §§ 2030.300(d); see Weil & Brown, § 1920.

In addition, a failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered and denies the imposition of sanctions against either the moving or responding party. Kaiser raised some objections that were substantially justified although it ultimately did not prevail on them for the reasons discussed above. The Court is also mindful of the substantial meet and confer efforts made by both sides to resolve the matter overall. Therefore, the Court concludes that sanctions are not appropriate or justified. However, the Court reserves jurisdiction to consider the issue of sanctions further and to impose sanctions if there is non-compliance with the orders made herein by the Court.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Response is **GRANTED**, as set forth further above.
2. Kaiser shall serve a verified further amended response to the Discovery Request at Issue within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The moving party shall prepare the order after hearing for the Court’s review and approval.

17. 9:01 AM CASE NUMBER: C25-02936

CASE NAME: SYLVIA HOLDEN VS. SFS 39 INC.

MOTION TO QUASH CONTINUED FROM 7/27/26

FILED BY: PLAINTIFF SYLVIA HOLDEN

TENTATIVE RULING:

Plaintiff Sylvia Holden (“Plaintiff”) filed a motion seeking to quash or limit a subpoena for production of medical records on January 30, 2026 (the “Motion to Quash”). The Motion to Quash was set for hearing on July 27, 2026. The motion is opposed.

Background

Defendant SFS 39 Inc. (“Plaintiff”) issued a subpoena to Kaiser Foundation Health Plan, Inc. dated January 15, 2026 seeking the following medical records for Plaintiff (collectively, the “Subpoenaed Medical Records”):